

106	Balt USA, LLC vs. Treadstone Medical LLC 2021-01237081	Motion to Seal Plaintiff Balt USA, LLC’s motions to seal (ROA 1968) is GRANTED. Plaintiff’s motion seeks to permanently seal Exhibits 25-38, 42-47, and 49-66 to the Declaration of Eric Kohan in Support of Plaintiff Balt USA, LLC’s Motion for Leave to Amend. <u>Legal Authority</u> “Unless confidentiality is required by law, court records are presumed to be open.” (Cal. Rules of Court [CRC], rule 2.550(c).) “The court may order that a record be filed under seal only if it expressly finds facts that establish: (1) [t]here exists an overriding interest that overcomes the right of public access to the record; (2) [t]he overriding interest supports sealing the record; (3) [a] substantial probability exists that the overriding interest will be prejudiced if the record is not sealed; (4) [t]he proposed sealing is narrowly tailored; and (5) [n]o less restrictive means exist to achieve the overriding interest.” (CRC, rule 2.550(d).) However, this rule “does not apply to records that are required to be kept confidential by law” (CRC, rule 2.550(a)(2)), such as “[a] document which is protected by the lawyer-client privilege” (<i>Huffy Corp. v. Super. Ct.</i> (2003) 112 Cal.App.4th 97, 108). Overriding interests include a substantial probability that the movant’s business, competitiveness, and privacy rights will be adversely affected if the record is not sealed. (<i>See, e.g., Overstock.com, Inc. v. Goldman Sachs Group, Inc.</i> (2014) 231 Cal.App.4th 471, 503, internal quotes & citations omitted [right to privacy “extends to one’s confidential financial affairs” and “embraces confidential financial information in whatever form it takes, whether that form be tax returns, checks, statements, or other account information”]; <i>McGuan v. Endovascular Technologies, Inc.</i> (2010) 182 Cal.App.4th 974, 988-989 [affirming order granting motion to seal documents containing trade secrets]; <i>see also Nixon v. Warner Communications, Inc.</i> (1978) 435 U.S. 589, 598 [recognizing sealing appropriate for “sources of business information that might harm a litigant’s competitive standing”]; <i>Hecht, Solberg, Robinson, Goldberg & Bagley LLP v. Super. Ct.</i> (2006) 137 Cal.App.4th 579, 594 [“Although corporations have a lesser right to privacy than human beings and are not entitled to claim a right to privacy in terms of a fundamental right, some right to privacy exists”]; <i>Universal City Studios, Inc. v. Super. Ct.</i> (2003) 110 Cal.App.4th 1273, 1286 [denying motion to seal due to public disclosure, but finding that normally, sealing is appropriate where “information involves confidential matters relating to the business operations of defendant” and “public revelation of these matters would interfere with its ability to effectively compete in the marketplace”].) The moving party bears the burden of “(1) identifying the specific information claimed to be entitled to such treatment[and] (2) identifying the nature of the harm threatened by disclosure.” (<i>H.B. Fuller Co. v. Doe</i> (2007) 151 Cal.App.4th 879, 894 [additionally, the court must also “(3)
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		identify[] and account[] for countervailing considerations”].) “This means at a minimum that the [moving] party . . . must come forward with a specific enumeration of the facts sought to be withheld and specific reasons for withholding them.” (<i>Id.</i>) Indeed, CRC rule 2.551(b)(1) requires that a motion to seal “must be accompanied by a memorandum and a declaration containing facts sufficient to justify the sealing.” <u>Merits</u> Plaintiff has submitted a declaration attesting that the material sought to be sealed contains “Balt’s highly sensitive, non-public, confidential and trade secret information.” (ROA 1957.) Among other things, the documents contain “summary technical documentation, design files, and reporting related to Balt’s Titan catheter system (Exhibits 25-26, 35, 51-53, 62), product design specifications, validations plans, manufacturing procedures, risk analysis, and other reporting related to Balt’s Ballast Long Sheath (Exhibits 27-30, 58, 63-65), risk assessment files, product design specifications, and other reporting related to Balt’s Squid products (Exhibit 31-32, 42-45, 49), validation protocol for Balt’s Magic catheter (Exhibit 33, 55, 61), [and] performance studies for Balt’s Eclipse 2L Dual Lumen Balloon Catheter (Exhibit 34).” (ROA 1968.) “Balt undertakes significant efforts to maintain the secrecy of such information, and it would suffer significant harm if such information were revealed to the public, including to competitors.” (<i>Id.</i>) “If this information were made public, competitors would gain confidential insight into Balt’s internal products which could be used to create competing products, resulting in an unfair competitive advantage.” (ROA 1957.) Accordingly, the Court finds that Plaintiff has met the procedural requirements for the instant motion and sufficiently demonstrated overriding interests support sealing the requested items. The proposed order (ROA 1953) is deficient. Within (5) court days of this ruling, Plaintiff is also ORDERED to submit a revised proposed order setting forth the information required by CRC rule 2.550(e)(1)(A), as well as identifying the specific filings—by pleading title and ROA number—that are to be sealed in accordance with this ruling. Plaintiff shall give notice.
107	Higgins vs. Spigen Inc. 2024-01376537	Motion to Seal Plaintiff Mary Higgins moves to seal a settlement agreement (and refence thereto) between plaintiff and defendant Spigen, Inc., which defendant lodged conditionally under seal in support of plaintiff’s motion approval of a PAGA settlement. For the following reasons, the motion is denied. Unless confidentiality is required by law, court records are presumed to be open. Cal. R. Ct. 2.550(c). A record must not be filed under seal without a court order. Cal. R. Ct. 2.551(a). The court must not permit a record to be filed under seal based solely on the agreement or stipulation of the parties. <i>Id.</i>